

HOUSE No. 5558

Text of House document No. 5549, being House amendments and committee on Bills in the Third Reading changes of the Senate Bill improving campaign finance reporting for statewide ballot questions (Senate bill No. 2916), as amended by the House. July 1, 2026.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

By striking out all after the enacting clause and inserting in place thereof the following:—

1 SECTION 1. Section 22A of chapter 53 of the General Laws, as appearing in the 2024
2 Official Edition, is hereby amended by adding the following 2 paragraphs:—

3 Blank forms provided for the collection of signatures for an initiative petition or
4 referendum petition, which will be circulated by a person receiving compensation for the
5 collection of signatures, shall include a disclosure, in a manner to be determined by the state
6 secretary, which clearly informs potential signatories that the form is being distributed by a paid
7 signature gatherer.

8 Blank forms provided for the collection of signatures shall include a notice, in a manner
9 to be determined by the state secretary, directing potential signatories to the website maintained
10 by the office of campaign and political finance containing the campaign finance reports of the
11 ballot question committee organized to support or oppose such initiative petition or referendum
12 petition.

SECTION 2. Said chapter 53 is hereby further amended by inserting after section 22A the following section:-

Section 22A1/2. (a) No person shall provide anything of value contingent upon the number of signatures collected for a statewide initiative petition or referendum petition, including, but not limited to, payments on a fee-per-signature basis or incentive bonuses for obtaining a certain number of signatures.

(b) A violation of this section shall be punishable by a fine of not less than \$100 nor more than \$10,000; provided, however, that each signature collected in violation of this section shall be a separate offense.

(c) Not later than 60 days after a state election at which a question proposed by initiative or referendum petition appeared on the ballot, the state secretary shall file a report with the clerks of the senate and house of representatives, and shall make such report available to the public, certifying, based on information available to the state secretary as of the date of the report, whether payments for the collection of signatures for each initiative or referendum petition complied with this section.

SECTION 2A. Section 53 of chapter 54 of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by inserting after the word “finances”, in line 20, the following words:-, a notice directing voters to the website maintained by the office of campaign and political finance containing the campaign finance reports of the ballot question committees organized to support or oppose each measure.

SECTION 3. Section 1 of chapter 55 of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by inserting after the definition of “State office” the following 2 definitions:-

“Statewide ballot question”, a specific question submitted to the voters at a state election under Article XLVIII of the Amendments to the Constitution of the Commonwealth proposing an initiative or referendum question or a constitutional amendment.

“Statewide ballot question committee”, a political committee which receives or expends money or other things of value for the purpose of favoring or opposing the adoption or rejection of a statewide ballot question.

SECTION 4. The eleventh paragraph of section 3 of said chapter 55, as so appearing, is hereby amended by adding the following sentence:- If the evidence of a violation relates to a statewide ballot question, then the director shall present it to the attorney general not later than 30 days before or 3 years after the relevant election or, if the evidence does not relate to an identifiable election, not later than 3 years after the violation.

SECTION 5. Said section 3 of said chapter 55, as so appearing, is hereby further amended by inserting after the twelfth paragraph the following paragraph:-

Not later than 60 days after the state election at which a statewide ballot question appeared on the ballot, the director shall file a report with the clerks of the senate and house of representatives, and shall make such report available to the public, certifying, based on information available to the director as of the date of the report, with respect to each statewide ballot question committee organized to favor or oppose such statewide ballot question, whether the committee complied with the reporting, disclosure, contribution and expenditure

requirements of this chapter; provided, that if the director makes a referral to the attorney general pursuant to the eleventh paragraph following submission of the report required under this paragraph, the director shall file a supplemental report with the clerks of the senate and house of representatives not later than 30 days after such referral, and shall make such supplemental report available to the public.

SECTION 6. Subsection (a) of section 18 of said chapter 55, as so appearing, is hereby amended by striking out, in lines 12 and 13, the words “appears on ballots at a state election” and inserting in place thereof the following words:- is a statewide ballot question.

SECTION 7. Said subsection (a) of said section 18 of said chapter 55, as so appearing, is hereby further amended by striking out, in lines 60 to 64, inclusive, the words “, independent expenditure PACs organized pursuant to section 18A and political committees organized under the provisions of section 5 to favor or oppose a question submitted to the voters, if the question appears on the ballot at the state election” and inserting in place thereof the following words:- and independent expenditure PACs organized pursuant to section 18A.

SECTION 8. Said subsection (a) of said section 18 of said chapter 55, as so appearing, is hereby further amended by striking out clauses (5) and (6) and inserting in place thereof the following clause:-

(5) by all candidates and all political committees, except those candidates seeking election as members of a representative town meeting, or of a city ward or town committee, and non-elected political committees organized on behalf of such candidates, on or before January 20 in each year in which they are not otherwise required to file a report on or before January 20.

SECTION 9. Said section 18 of said chapter 55, as so appearing, is hereby further amended by striking out the words “clause (6)”, in line 106, and inserting in place thereof the following words:- clause (5).

SECTION 10. Subsection (a) of section 19 of said chapter 55, as so appearing, is hereby amended by inserting after the word “candidates”, in line 7, the following words:- , the treasurer of each statewide ballot question committee.

SECTION 11. Paragraph (2) of subsection (b) of said section 19 of said chapter 55, as so appearing, is hereby amended by adding the following sentence:- In addition, the treasurer of a statewide ballot question committee shall also include the following information: (i) a list of all in-kind contributions of more than \$50 received as of the last day of the preceding month and since the last statement, including an alphabetical list of names and addresses of each person making such in-kind contribution, the date received, the type of in-kind contribution and the value of the in-kind contribution; and (ii) a list of new liabilities incurred as of the last day of the preceding month, including the name and address of the person to whom the liability exists, together with a clear statement of purpose for which the liability was incurred.

SECTION 12. Subsection (f) of said section 19 of said chapter 55, as so appearing, is hereby amended by adding the following sentence:- The treasurer of a statewide ballot question committee required to designate a depository under this section that receives a contribution of not less than \$500 after the eighteenth day but not less than 72 hours before the date of an election in which a statewide ballot question favored or opposed by the committee is on the ballot shall file a report to disclose the information required under this section within 72 hours of depositing the contribution.

SECTION 13. Section 22 of said chapter 55, as so appearing, is hereby amended by striking out the third paragraph and inserting in place thereof the following paragraph:-

If the question is a statewide ballot question, the report shall be filed with the director as follows: (1) by the fifth day of each month covering the preceding month until the sixtieth day before the election; (2) on or before the fifth and twentieth day of each month, complete as of the preceding first and fifteenth day of the month, from the sixtieth day before the election until the election; (3) November 20 following the election, complete as of the fifteenth day of the month; and (4) January 20 of each year, complete as of December 31 of the prior year, until all declared liabilities of that person or corporation, association, organization or other group of persons have been discharged.

SECTION 14. (a) There shall be a special legislative commission established pursuant to section 2A of chapter 4 of the General Laws to conduct a comprehensive evaluation of the initiative petition process under Article XLVIII of the Amendments to the Constitution of the Commonwealth and to develop recommendations for a constitutional amendment to reform the process.

(b) The commission shall consist of the following 13 members: the chairs of the joint committee on election laws, who shall serve as co-chairs; the chairs of the joint committee on the judiciary; the secretary of the commonwealth or a designee; the attorney general or a designee; 1 person designated by the speaker of the house of representatives, who shall have substantial experience in or demonstrated involvement with ballot question campaigns as a representative of a labor organization, trade association or business advocacy group that has sponsored, opposed or provided significant financial or organizational support to 1 or more ballot questions within

the preceding 10 years; 1 person designated by the president of the senate, who shall have substantial experience in or demonstrated involvement with statewide ballot question campaigns as a representative of a labor organization, trade association or business advocacy group that has sponsored, opposed or provided significant financial or organizational support to 1 or more ballot questions within the preceding 10 years; 1 member of the house of representatives designated by the minority leader of the house of representatives; 1 member of the senate designated by the minority leader of the senate; and 3 members appointed by the governor, 1 of whom shall be a retired justice of the supreme judicial court: 1 of whom shall be a representative of Common Cause Massachusetts and 1 of whom shall be a town or city clerk with not less than 10 years of experience in the administration of elections in the commonwealth.

(c) The commission shall conduct a comprehensive review of the initiative petition process and examine reforms to Article XLVIII of the Amendments to the Constitution of the Commonwealth related to the following subjects:

(i) the scope of the attorney general's certification authority, including: (1) whether to expand the attorney general's certification review beyond the enumerated excluded subject matters of Article XLVIII to encompass an evaluation of whether a proposed measure, if enacted, would violate provisions of the Constitution of the Commonwealth or the Constitution of the United States; (2) the appropriate standard of review to be applied by the attorney general in any expanded constitutional review; and (3) any procedural and due process rights of initiative petition proponents in connection with any expanded review, including judicial review of an adverse determination;

(ii) the process for ensuring that voters receive a fair and concise summary of an initiative petition, including whether adequate mechanisms exist to identify and correct a summary found to be inaccurate or misleading after it has been published or after signatures have been collected;

(iii) the signature gathering requirements, including: (1) the appropriate number of signatures required to be collected; (2) whether the current single-county signature cap is adequate to ensure broad-based statewide support, or whether initiative petitions should be subject to an affirmative geographic distribution requirement; and (3) the effect of paid signature gathering on the integrity and value of the signature collection process, and whether reforms to address such effects are appropriate; and

(iv) the applicable timeframes and procedural deadlines, including: (1) the relationship between initiative petition deadlines and the biennial legislative calendar and whether greater alignment of those timelines may improve the process; and (2) the timeline for judicial review of attorney general certification determinations and other legal challenges, and whether current practice provides adequate opportunity for resolution of challenges before ballots must be printed.

(d) Not later than December 31, 2027, the special legislative commission shall file its report and recommendations with the clerks of the house of representatives and the senate who shall make the report publicly available on the official website of the General Court. The report shall include: (i) the findings of the commission with respect to each of the subjects enumerated in subsection (c); (ii) for each subject enumerated in subsection (c), whether the commission's findings or recommendations with respect to that subject could be implemented, in whole or in part, by legislation or regulation, rather than through an amendment to the constitution, together

with such draft legislation or regulation; (iii) specific recommendations for proposed amendments to Article XLVIII of the Amendments to the Constitution of the Commonwealth, together with such draft constitutional amendments; and (iv) any dissenting views of individual members of the commission, which shall be appended to the report.

SECTION 15. The treasurer of a statewide ballot question committee shall include in the first report filed with the director of campaign and political finance following the effective date of this act all information required to be reported under chapter 55 of the General Laws, as amended by sections 10 to 13, inclusive, dated since the closing date of the most recently filed report by the committee; provided, however, that if there was no previous report by the committee, the treasurer shall include in said first report all such information dated since January 1, 2026.

SECTION 16. Members of the special legislative commission to reform Article XLVIII of the Amendments to the Constitution of the Commonwealth, required pursuant to section 14, shall be appointed and designated not later than 60 days after the effective date of this act. The co-chairs of the special legislative commission shall convene the first meeting of the special legislative commission not later than 60 days after all members have been appointed or designated.

SECTION 17. Sections 1 to 13, inclusive, shall take effect 30 days after the effective date of this act.